

Trademark Filing Brief — Get Goods Gratis (Free)

⚠ **PENDING COUNSEL REVIEW (games→retail pivot, 2026-09-09).** The product repositioned games from a standalone "play-to-earn" pillar to **one searchable, zero-inventory store category** — users search for any game available online and buy or download it through the store, on the same sourcing/fulfillment model as every other product (no inventory held). This document has been **updated to reflect that model**; game/tournament references describe the searchable retail category (or, where they name backend functions/entities, the unchanged underlying code). It still requires **counsel sign-off** before reliance. Full decision record: GAMES-TO-RETAIL-PIVOT-DECISIONS-2026-09-09.md . **Action for trademark counsel:** confirm Nice classes for a retail-first identity — Class **35** (online retail / retail-store services) as primary, **9/41** for downloadable software/games as a searchable category; reassess whether **41 (entertainment/games)** should still lead now that games are a store category rather than a pillar. (Draft class list only — no filing amended here.)

Prepared 2026-09-05 for the owner and trademark counsel. Consolidates the brand assets and lays out what to register and what's needed to file. Not legal advice — availability, registrability, and the filings themselves are counsel's; "Gratis"/"Free" and descriptive terms may need special handling. This brief gathers everything in one place so that conversation is fast.

Are the logo, URL, and slogan in the bundle and ready to trademark?

Yes — they exist and are gathered here. This Trademarks folder contains the brand reference (BRAND-AND-TRADEMARK.md), this brief, and the **Black and White Images** folder holding the USPTO-compliant filing drawings (the mark, the slogan, the logo+slogan lockup, and the house-ad brand template). The name, slogan, and intended web address are captured below.

"Ready to trademark" means the assets are ready; filing still needs three counsel steps — a clearance search (is the mark available?), a class + basis decision (what goods/services, and use-based vs. intent-to-use), and a clean specimen. None of those can be done from here; they're the attorney's to run. The domain is a separate purchase (not a trademark) and should be registered directly with a registrar.

The brand at a glance

Primary brand / word mark	Get Goods Gratis (Free) — commonly "Get Goods Gratis"
Slogan / tagline	"Where Global Goods Gather"
Marketing descriptor (not a filed mark)	"Buy Anything Available Online" — unregistered line beneath the tagline in the brand lockup
Logo / design mark	the "G ³ " (G-cubed) monogram — a serif G with a superscript 3 in a rounded square
Intended web address (domain, not a TM)	getgoodsgratis.com (verify availability & register with a registrar)
Other names in the codebase	GamerGain, PlayEarning Nexus (legacy/internal — counsel to decide if either is used in commerce and worth protecting)

Marks to consider registering

Ranked by priority. Descriptive marks (those that just describe the goods) are weaker and may need to show "acquired distinctiveness" or route to the Supplemental Register — counsel decides.

#	Mark	Type	Suggested USPTO classes (confirm)	Filing basis	Notes

1	Get Goods Gratis	Standard-character word mark	35 (online retail / advertising & marketing services), 42 (SaaS/software platform), 9 (downloadable mobile app)	Intent-to-Use (1(b)) if not yet in commerce, else Use (1(a))	Core brand — file first. "Gratis"/"Free" is descriptive; counsel may disclaim "Free" or argue the whole is suggestive.
2	"G³" logo (design mark)	Design/stylized mark	Same classes as #1	ITU or Use	Protects the visual mark. File the black-and-white drawing shown below. Specimen: the logo as actually used (app header, store listing).
3	Where Global Goods Gather	Slogan / word mark	35, 42	ITU or Use	Slogans are registrable if they function as a source identifier (not merely informational). Keep it a brand tagline, never an earnings/ROI claim. The paired descriptor "Buy Anything Available Online" is intentionally NOT filed — it is descriptive; keep it an unregistered marketing line beneath this tagline (see SLOGAN-WRITE-UP.md §4a).
4	Get Goods Gratis + logo (composite)	Combined word+design	Same classes	ITU or Use	Optional — some owners file the word mark and the logo separately (broader) rather than one composite.
5	GamerGain / PlayEarning Nexus	Word mark(s)	35, 41 (entertainment/games), 42, 9	Use or ITU	Only if actually used in commerce and worth the spend. Counsel to advise; may be legacy.
6	House-ad brand template (branded creative frame)	Trade dress / design mark	35	ITU or Use	The consistent branded "shell" stamped on every AI-generated ad — the top website-link bar + the "G³" watermark + frame — that makes any creative recognizably yours. Trade-dress/design candidate; counsel to assess distinctiveness + non-functionality. File the black-and-white drawing shown below.

Filing drawings (USPTO-compliant, black-and-white)

The marks are filed as **black-and-white drawings**. The three images below are the filing-ready drawings — each is grayscale, 250–944 px on every side, 350 DPI, and under 5 MB, so an attorney can lift them straight from this brief to file. The source files are in [Trademarks/Black and White Images/](#).

"G³" logo (design mark) — [GGG-mark-BW-USPTO-900px-350dpi.jpg](#)



Logo + slogan lockup — [GGG-logo-slogan-BW-USPTO.jpg](#)



Where Global Goods Gather

"Where Global Goods Gather" slogan — GGG-slogan-BW-USPTO.jpg

Where Global Goods Gather

Recurring brand elements worth filing (the visual system)

You don't trademark the AI pipeline's per-advertiser creatives — they're open-ended and usually carry the *advertiser's* brand, not yours, so there is nothing for **your** mark to attach to (and purely AI-generated images are also outside copyright). What you protect is the **consistent brand system stamped on all of them**.

In priority order:

Element	What it is	How to protect	Status
"G³" logo	the core design mark	design mark (row 2)	drawing ready
"Where Global Goods Gather" slogan	tagline	word mark + optional stylized (row 3)	drawing ready
Logo + slogan lockup	the paired mark	design mark	drawing ready
"G³" watermark	the logo used as the semi-	covered by the "G³" design mark — same mark;	no new

	transparent watermark behind every ad	the watermark use is a <i>specimen</i> , not a separate filing	mark needed
House-ad brand template	the branded creative frame (URL bar + watermark + layout) on every AI ad	trade dress / design mark (row 6) — counsel to assess	drawing ready (below)
Mascot / signature character	<i>if you ever add one</i>	design mark + human authorship for copyright	future

Key point for counsel: the house-ad template is best understood as **trade dress** — a consistent look applied across creatives. Trade dress is protectable but must be **distinctive** and **non-functional**, so counsel should assess whether the frame is distinctive enough to register and should claim the *branded* elements (the website-link bar + the "G³" watermark + their arrangement), not the functional placeholder area. The AI-generated disclosure label is deliberately **excluded** from the drawing (it is a regulatory element, not brand identity).

House-ad brand template — filing drawing (USPTO-compliant, black-and-white):



USPTO-compliant filing drawing (grayscale, within 250–944 px on every side, 350 DPI, under 5 MB). Filing-ready source: [Black and White Images/AD-BRAND-TEMPLATE-BW-USPTO.jpg](#).

Secondary / feature names — flag for counsel, likely lower priority

Names used inside the product that *might* function as marks, but several are **descriptive/weak** and may not be worth separate registrations: **"Site Cash"** (the closed-loop credit — descriptive, likely weak), **"Founding Partner"** / **"Founding Advertiser"** (common phrasing), tier names (**"Tier 1/2/3"**, **"Scale"**, **"Unlimited"** — descriptive), **"Buddy Chat"**, **"Points Boost"**, **"Daily Boost"**, **"Full-Value Delivery Guarantee"**. Recommendation: **don't file these individually now**; protect the house brand (#1–#3) first, use ™ on any you want to stake a common-law claim to, and revisit distinctive ones later.

What a filing needs (so counsel can move fast)

- **Applicant/owner** — the legal entity or person who will own the mark (get this right; it's hard to fix).
- **Clearance search** — USPTO + common-law search to confirm the mark is available and non-confusing. **Do this before any heavy public use or filing.**
- **Goods/services + classes** — each class is a separate government fee (currently ~\$250-\$350/class USPTO). The likely set here is **35 (advertising/marketing + online retail), 42 (SaaS), 9 (downloadable app)**; add **41** if games/entertainment are a core offering.
- **Basis: Use (1(a)) vs. Intent-to-Use (1(b)).** Pre-launch, you'll likely file **1(b) Intent-to-Use** now (locks priority), then submit a **specimen of use** after launch to complete registration.
- **Specimen** — a real example of the mark in commerce (app store listing, website header, checkout page). Not needed to *start* an ITU filing; needed to *complete* it.

Symbols & sequencing

- Use ™ now on the word mark, slogan, and logo to assert common-law rights (no registration required).
- Use ® **only after** a federal registration actually issues — using it before is improper.
- **Domain ≠ trademark.** Register `getgoodsgratis.com` (and consider `.co / .shop / .app` and social handles) with a registrar to protect the name online; that's separate from the trademark filing.

Recommended next steps

1. Confirm the **owning entity**.
2. Have counsel run a **clearance search** on **Get Goods Gratis**, the **slogan**, and the **G³ logo**.
3. File **Intent-to-Use** applications for #1-#3 in classes **35 / 42 / 9** (+ 41 if games are core).
4. Register the **domain** + key variants and social handles directly.
5. Put ™ into use on the brand now; move to ® per mark once each registers.
6. Revisit secondary/feature names later; keep using ™ on the distinctive ones in the meantime.

Assets in this folder: `BRAND-AND-TRADEMARK.md` (brand reference — name, slogan, logo spec, usage) and `Black and White Images/` — the USPTO-compliant black-and-white JPEG drawings to file (mark, slogan, and logo+slogan lockup, house-ad brand template). Cross-reference: `FOR-YOUR-ATTORNEY.md`.